Od: Gonçalo FELGUEIRAS E SOUSA <Goncalo.Felgueiras@euda.europa.eu>
Komu: [soukromý e-mail anonymizován] <[soukromý e-mail anonymizován]>
Kopie: Paula SENRA <Paula.Senra@euda.europa.eu>
Datum: 15. 10. 2026 11:25:25
Předmět: RE: Comparability of THC data - Access to documents request

Dear Mr Dvořák,
Please let me know if you got my email of 1 October (below). Just to make sure that my emails are reaching you.
I expect to be able to send you the requested documents by tomorrow, i.e. before the applicable regulatory deadline.
Yours sincerely,
Gonçalo FELGUEIRAS E SOUSA

Data protection officer; Principal administrator for antifraud, diplomatic relations and public access to documents

Directorate, Resources management & administrative services unit

+351 211 210 231 | Goncalo.Felgueiras@euda.europa.eu

European Union Drugs Agency (EUDA)

Praça Europa 1, Cais do Sodré | 1249-289 Lisbon, Portugal | euda.europa.eu

This message and any attachment contain information which may be sensitive or otherwise protected from disclosure. It is intended for the addressee(s) only and should not be relied upon as legal advice unless otherwise stated. If you are not the intended recipient, access to this e-mail, or any disclosure or copying of its contents, or any action taken (or not taken) in reliance on it is unauthorised and may be unlawful. If you have received this e-mail in error, please inform the sender immediately.

Please consider the impact on the environment before printing this email.
From: Gonçalo FELGUEIRAS E SOUSA
Sent: Thursday 1 October 2026 11:04
To: [soukromý e-mail anonymizován]
Cc: Dante STORTI <Dante.Storti@euda.europa.eu>; Fabian PEREYRA <Fabian.Pereyra@euda.europa.eu>; DRO-EXO Assistants <DRO-EXO_assistants@euda.europa.eu>; Paula SENRA <Paula.Senra@euda.europa.eu>
Subject: Comparability of THC data - Access to documents request
Dear Mr Dvořák,
I refer to your email of 27 September last, “Fundamental objection to the EUDA response of 25 September 2026 concerning the performance of EUDA’s duties under Regulation (EU) 2023/1322, the comparability of published data on THC content in cannabis, and the methodological traceability of those data”,
Given that it contains a separate request for access to documents pursuant to Regulation (EC) No 1049/2001, the present email serves to acknowledge receipt of that request by the European Union Drugs Agency (EUDA) and to inform you that it has been registered. Its processing has already commenced as a separate procedure, i.e. distinct from the call to act, including the identification of any of the documents requested by you, that may be held by the relevant EUDA services.
The EUDA will revert to you as soon as possible and, in any event, within the time limits laid down in the applicable legislation.
Yours sincerely,
Gonçalo FELGUEIRAS E SOUSA

Data protection officer; Principal administrator for antifraud, diplomatic relations and public access to documents

Directorate, Resources management & administrative services unit

+351 211 210 231 | Goncalo.Felgueiras@euda.europa.eu

This message and any attachment contain information which may be sensitive or otherwise protected from disclosure. It is intended for the addressee(s) only and should not be relied upon as legal advice unless otherwise stated. If you are not the intended recipient, access to this e-mail, or any disclosure or copying of its contents, or any action taken (or not taken) in reliance on it is unauthorised and may be unlawful. If you have received this e-mail in error, please inform the sender immediately.

Please consider the impact on the environment before printing this email.

European Union Drugs Agency (EUDA)

Praça Europa 1, Cais do Sodré | 1249-289 Lisbon, Portugal | euda.europa.eu

From: Dušan Dvořák <[soukromý e-mail anonymizován]>
Sent: 27 September 2026 16:20
To: EUDA Executive Director <ExecutiveDirector@euda.europa.eu>
Cc: Lorraine NOLAN <Lorraine.Nolan@euda.europa.eu>; Fabian PEREYRA <Fabian.Pereyra@euda.europa.eu>; Dante STORTI <Dante.Storti@euda.europa.eu>; Jane MOUNTENEY <Jane.Mounteney@euda.europa.eu>; [organizační e-mail anonymizován]
Subject: FUNDAMENTAL OBJECTION TO THE EUDA RESPONSE OF 25 SEPTEMBER 2026

Some people who received this message don't often get email from [soukromý e-mail anonymizován]. Learn why this is important

FUNDAMENTAL OBJECTION TO THE EUDA RESPONSE OF 25 SEPTEMBER 2026
concerning the performance of EUDA’s duties under Regulation (EU) 2023/1322, the comparability of published data on THC content in cannabis, and the methodological traceability of those data

Mgr. Dušan Dvořák
Chairman of the Board, Cannabis is The Cure, z. s.
Head of the “Cannabis is The Cure” research programme
Educational Cannabis Clinic
[adresa anonymizována]

Czech Republic

Dr Lorraine Nolan
Executive Director
European Union Drugs Agency – EUDA
Praça Europa 1, Cais do Sodré
1249-289 Lisbon
Portugal
Ospělov, 26 September 2026
Subject: Fundamental objection to EUDA response Ref. EXO/FHP/pd (26) D 106 of 25 September 2026 – comparability, objectivity and reliability of data on THC content in cannabis
Dear Dr Nolan,
Thank you for EUDA's extensive response of 25 September 2026 to my formal call to act of 7 August 2026 and its subsequent supplements.
Your response constitutes EUDA's position on my call to act under Article 265 TFEU. I therefore do not claim in this submission that procedural inaction within the meaning of that provision continued after 25 September 2026. I do, however, raise a fundamental objection to the reasons set out in your response and, in particular, to the evidently unresolved problem of the governance, control, interpretation and publication of European data on THC content in cannabis.
I. EUDA's duties under Regulation (EU) 2023/1322
The starting point cannot be whether EUDA is a superior authority over national forensic laboratories. I have never claimed that it is.
The starting point must be EUDA's own statutory duties.
Regulation (EU) 2023/1322 of the European Parliament and of the Council requires EUDA to provide the Union and the Member States with factual, objective, reliable and comparable information on drugs and drug-related issues.
Article 6(1)(f) further requires the Agency to ensure improved comparability, objectivity and reliability of information and data at Union level, inter alia through indicators and non-binding common standards, with the aim of achieving greater uniformity of the measurement methods used by Member States and the Union.
Article 15 establishes a network of forensic and toxicological laboratories whose purpose includes supporting quality-assurance systems and the further harmonisation of data-collection and analytical methods.

My question is therefore not: “Why does EUDA not control the Czech police?”
My question is: “How does EUDA fulfil its own statutory duty to ensure the objectivity, reliability and comparability of data at Union level if it does not know and does not systematically compare the analytical procedures by which the national values entering European indicators were produced?”
II. EUDA’s response confirms the very core of the problem
In its response, EUDA expressly acknowledges that methodological differences may be relevant to the results of THC determination. This concerns, in particular, differences between gas and liquid chromatography, the analytical treatment of THC and THCA, sample preparation, homogenisation, drying and storage, representativeness of sampling, and the determination and reporting of measurement uncertainty.

At the same time, EUDA expressly stated that it does not maintain a systematic inventory of the analytical methods used by individual forensic laboratories in the Member States for determining THC in cannabis.
According to its own response, EUDA therefore does not hold comprehensive information enabling it to compare the use of GC, GC-FID, LC or HPLC, approaches to THC and THCA determination, sampling and storage procedures, or approaches to determining and reporting measurement uncertainty.
The Agency also stated that it has not undertaken a systematic comparative assessment of the THC determination methods used in the Member States.
Furthermore, since its formal launch at the end of 2025, EUDA’s Network of Forensic and Toxicological Laboratories has not undertaken dedicated work on methods for determining THC concentrations in cannabis, THC/THCA determination, or the harmonisation of those analytical approaches.
Finally, EUDA stated that it has not carried out the comparative assessment of the issues I raised, has not decided to conduct or commission such work, and that no such activity is currently included in the Agency’s planning.
This is precisely where the fundamental contradiction arises that your response does not resolve.
III. This is not only about national forensic laboratories. It is about data published by EUDA itself
EUDA publishes European indicators, averages and time series concerning THC content in seized cannabis.
If such figures are to be used as European indicators and are intended to enable monitoring over time or comparison of data, it must be clear what the individual national values actually mean and whether they measure a sufficiently comparable quantity.

Accreditation of a laboratory under ISO/IEC 17025 does not in itself resolve this issue. EUDA itself acknowledged that the information on accreditation and proficiency testing was not collected for the purpose of assessing the comparability of THC/THCA methods and therefore does not permit a conclusion on that specific question.
A laboratory may be technically competent to perform its own validated method without this proving that its result is analytically comparable, without further qualification, to the result of another laboratory using a different definition of the analyte, different sample preparation or a different chromatographic procedure.
This is precisely the problem to which I am drawing attention.
IV. THC and THCA are not the same analytical question under different procedures
During gas chromatography, high temperature may cause decarboxylation of THCA to THC. Liquid chromatography, by contrast, makes it possible to determine THC and THCA separately.
The result therefore depends not only on the plant itself, but also on what was sampled, how the sample was prepared, whether it was dried, how it was homogenised, how it was stored, which analytical method was used, and whether the reported value is THC, THCA or calculated “total THC”.

If individual Member States or their laboratories proceed differently, comparability of the resulting figures cannot simply be assumed. It must either be methodologically demonstrated or the limitations on comparability must be stated clearly and visibly when the data are published.
V. This is not a theoretical issue
Professor Lumír Ondřej Hanuš, an internationally recognised Czech chemist and cannabinoid researcher who has long worked at the Hebrew University of Jerusalem, drew attention in his expert statement of 13 March 2015 to the fundamental importance of the manner in which cannabinoids are determined and to the distinction between THC and its acidic precursor THCA.
In the Czech Republic, the determination of active substances in cannabis was also addressed by doc. RNDr. Peter Ondra, Ph.D., Head of the Institute of Forensic Medicine and Medical Law at University Hospital Olomouc, who in communications of 29 April 2013 and 24 September 2014 confirmed measurements of active substances in cannabis within our “Cannabis is Medicine” research programme. The submitted results also show how markedly results may differ according to the analysed material and the procedure selected.
The expert institute of Palacký University Olomouc also concluded in its expert opinion of 10 August 2015 that the submitted cannabis was not a precursor within the meaning of the relevant legislation.

I did not submit these materials to EUDA so that it would decide guilt or innocence in my criminal proceedings. I submitted them as concrete evidence that the definition of the measured quantity and the analytical method may have fundamental practical and legal consequences.
The same is demonstrated by examples from other countries, including the materials from Denmark.
VI. The Danish material shows why it is not enough to say that this is a national competence
An official document of the Danish Ministry of Justice dated 28 June 2024 was also submitted to EUDA.
Its significance is not that EUDA should review a specific Danish criminal case.
Its significance is that the document shows that the method of laboratory determination of THC may have a direct bearing on legal classification and criminal-law consequences.
If the same European terms such as “THC content”, “cannabis potency” or similar indicators may be based on analytically different values, this is relevant not only to national criminal law but also to the quality and interpretation of European data.
VII. Historical and EU-law context
The Czech Republic joined the European Union on 1 May 2004 and assumed the obligation to apply the Union acquis.
Council Framework Decision 2004/757/JHA was adopted on 25 October 2004.
I do not claim that the Treaty of Accession or Article 83 TFEU themselves prescribed a specific chromatographic method for measuring THC. Such a claim would be inaccurate.
I do, however, draw attention to a broader problem: European harmonisation of drug policy and the criminal-law framework proceeded without simultaneously ensuring unequivocal European comparability of the analytical basis on which some cannabis-related data may rest.

This is precisely why EUDA’s duty under Regulation (EU) 2023/1322 to improve the comparability, objectivity and reliability of information and to support greater uniformity of measurement methods is of particular importance today.
VIII. The fundamental question remains unanswered
I respect EUDA’s position that neither Article 6(1)(f) nor Article 15 of Regulation (EU) 2023/1322 requires the Agency, at the request of an individual, to carry out the particular study proposed by that individual.
That, however, does not answer the essential question.

EUDA has scientific discretion in selecting specific scientific tools and priorities. In my view, however, that discretion cannot mean that the Agency need not be able to demonstrate how it fulfils the statutory duty itself to ensure improved comparability, objectivity and reliability of the data that it processes and publishes at European level.
I therefore ask you to answer the following question:
By what concrete and verifiable mechanism does EUDA ensure the comparability of published data on THC content in cannabis between Member States and across time series when EUDA simultaneously confirms that it has no systematic inventory of the THC determination methods used by individual forensic laboratories, no comprehensive information on differences between GC/GC-FID/LC/HPLC, THC/THCA, sampling, storage and measurement uncertainty, and has not carried out a systematic comparative assessment of those methods?
IX. Specific requests to EUDA
I therefore request that EUDA:
1. describe the concrete mechanism by which it verifies the comparability of national data on THC content before using them in European averages, indicators and time series;
2. state what definition of THC is used for individual national inputs – in particular whether it is native Δ9-THC, THC after thermal conversion of THCA, or “total THC” – and how this is recorded in the metadata;
3. explain how, in European comparisons, it takes account of differences in sampling, homogenisation, drying, storage, analytical method and measurement uncertainty;
4. explain how EUDA alerts users, when publishing European data, to limitations on their comparability where the methodological comparability of national inputs has not been verified;
5. state whether the two attached documents and the expert materials I submitted have been forwarded to the expert team responsible for cannabis potency indicators and to the Network of Forensic and Toxicological Laboratories under Article 15 of Regulation (EU) 2023/1322; if not, I request that they be forwarded and that the further course of action be substantively reasoned;

6. provide a methodological audit trail at least for the selected 2024 figure and the 2014–2024 time series: the original national datum, the definition of measured THC, the form of material analysed, the aggregation method, the analytical method used, available information on measurement uncertainty and recorded methodological changes; at the same time, I request information on who verified the methodological comparability of the Czech and Danish inputs and when; if it was not verified, I request that EUDA expressly state this alongside the relevant indicator;

7. state whether EUDA will review the wording of its public outputs and add an express warning that, without distinguishing native THC, THCA and total THC and without knowledge of sampling and analytical method, some national data may not be directly comparable. If EUDA refuses such a revision, I request identification of the responsible person or unit, the scientific basis for that decision and its written reasons.
I request a substantive position on these questions within 30 days.
X. The request for access to documents is separate
If EUDA holds documents, methodological materials, internal instructions, metadata, correspondence with National Focal Points or the laboratory network showing how the comparability of THC data is controlled, I also request access to them under Regulation (EC) No 1049/2001.
This request for access to documents is separate and does not alter the nature of this objection.
XI. Further course of action
I regard your response of 25 September 2026 as EUDA’s position on the formal call to act under Article 265 TFEU. This submission therefore does not suggest that the original procedural inaction continued after that position was adopted.
The objection now concerns the content and reasoning of EUDA’s position, the governance of European data, transparency about methodological limitations, and the manner in which the Agency fulfils its own duties concerning comparability, objectivity and reliability.
In view of the seriousness of the findings contained in EUDA’s response of 25 September 2026, I have submitted the matter for assessment to the European Ombudsman, from the perspective of possible maladministration in the governance, control, interpretation and publication of EUDA data and in the performance of the Agency’s duties concerning their comparability, objectivity and reliability.
I do not ask for the outcome of the scientific assessment to be predetermined.
I ask that EUDA be able to demonstrate the methodological basis of the data it publishes, explain the limits of their comparability, and transparently state what it knows and does not know about their comparability.
Yours sincerely,
Mgr. Dušan Dvořák
Chairman of the Board, Cannabis is The Cure, z. s.
Head of the “Cannabis is The Cure” research programme
Educational Cannabis Clinic
[adresa anonymizována]

Czech Republic
XII. Evidence and internet links

As key evidentiary materials for this objection, I identify in particular the following documents and publicly available sources. The documents under points 1 and 2 were sent to EUDA separately; points 3 to 5 enable direct verification of the expert opinions and ongoing national proceedings demonstrating the practical consequences of the methodological problem.
1. Position of the European Commission
European Commission, Directorate-General for Agriculture and Rural Development (DG AGRI), 31 March 2026, Ref. Ares(2026)3399259. The document was sent to EUDA separately as key evidence concerning the distinction between the agricultural methodology for determining THC and the forensic use of analytical methods.
2. Position of the Danish Ministry of Justice
Danish Ministry of Justice, Strafferetskontoret, 28 June 2024, Sagsnr. 2023-03729, Dok. 3320589; Folketinget, Retsudvalget 2023–24, REU Alm. del – Bilag 276, document No 2888350: “Orientering om opfølgning på Vestre Landsrets dom af 9. marts 2023 om grænseværdien på højst 0,2 pct. THC i bekendtgørelse om euforiserende stoffer”. The document was sent to EUDA separately as key evidentiary material.
3. Opinions of the cited experts and expert institutes
Publicly available collection of expert opinions, including opinions by Prof. Lumír Ondřej Hanuš, DrSc., doc. RNDr. Peter Ondra, CSc., and the expert institute of Palacký University Olomouc: https://www.konopijelek.cz/novinky/znalci-a-znalecke-ustavy/